

Summary

Board Bill Number 19

Introduced by Alderwoman Jami Cox Antwi

May 8, 2026

An ordinance amending Ordinance 70767 to extend the sunset date of the Minority and Women-Owned Business Enterprise Program for the City of St. Louis to December 31, 2026.

**BOARD BILL NUMBER 19 INTRODUCED BY ALDERWOMAN JAMI COX ANTWI
COSPONSORS: ALDERWOMAN ALISHA SONNIER/ALDERWOAN SHAMEEM
CLARK-HUBBARD/ALDERMAN RASHEEN ALDRIDGE**

An ordinance amending Ordinance 70767 to extend the sunset date of the Minority and Women-Owned Business Enterprise Program for the City of St. Louis to December 31, 2026.

WHEREAS, the City of St. Louis passed Ordinance 70767 which codified the City's M/WBE Program effective June 4, 2018 and included certain programmatic changes recommended in the 2015 Disparity Study; and

WHEREAS, Ordinance 70767 was amended in part by Ordinance 71094, effective April 7, 2020; and

WHEREAS, the City of St. Louis remains committed to using its spending powers in a manner that eliminates the disparities documented in the 2024 Disparity Study; and

WHEREAS, the City of St. Louis and the Board of Alderman remain committed to ensuring that all St. Louis citizens participate in its economic growth and development and that no citizen be denied an opportunity to participate in the procurement of goods and services due to race, sex, or gender discrimination;

WHEREAS, the City of St. Louis and the Board of Aldermen remain committed to completing the necessary actions to achieve that goal and have determined that extending the sunset date is a necessary step in that effort; and

BE IT ORDAINED BY THE CITY OF ST. LOUIS AS FOLLOWS:

SECTION ONE. The Board of Aldermen finds that the Contract Disparity Study conducted by Keen Independent Research (“Keen”) to determine whether Minority and Women-Owned Business Enterprises (“M/WBE”s) are utilized on City of St. Louis and tax-incentivized prime contracts and subcontracts relative to such firms’ availability within the St. Louis Metropolitan Statistical Area was completed and presented to the City in February 2024. The Board further

1 finds that the Contract Disparity Study revealed statistically significant disparities for African
2 American, Asian American, Hispanic American, and Native American-Owned Business
3 Enterprise construction firms; African American, Asian American, Hispanic American, Native
4 American, and Women Owned Business Enterprise professional services firms; African American,
5 Asian American, Hispanic American, Native American, and Women Owned Business Enterprises
6 other services firms; and Asian American, Hispanic American, Native American, and Women
7 Owned Business Enterprises providing goods. Therefore, the Board finds that the Contract
8 Disparity Study supports continuance of an M/WBE program to remedy such disparities. The
9 Board further finds that Keen made recommendations for legislative changes to the M/WBE
10 Program that was established in Ordinance 70767. The purpose of this ordinance is to extend the
11 Sunset Date of the M/WBE Program established by Ordinance 70767 to allow time to complete
12 legislation to implement Keen's recommendations or otherwise modify or update the M/WBE
13 Program.

14 **SECTION TWO.** Ordinance 70767 is amended by deleting Section 7 and inserting a new Section
15 7 which shall be and read as follows:

16 **SECTION 7. BUSINESS ADVISORY COUNCIL (BAC) AND THE SMALL BUSINESS**
17 **PROGRAM.**

18 i. **Business Advisory Council.** A Business Advisory Council (BAC) shall be established
19 and appointed by the Mayor and approved by the Board of Alderman to serve as an advocate for
20 M/WBEs to increase access to the procurement process. The BAC shall have five (5) but not more
21 than nine (9) members, each appointed by the Mayor and approved by the Board of Aldermen for
22 staggered terms, with the Chairman designated and appointed by the Mayor. A member may serve

1 more than one term. The BAC members shall be approved by resolution of the St. Louis Board of
2 Aldermen. The BAC shall advise and make M/WBE Program recommendations in the following
3 areas:

- 4 a. Increasing access to contracting opportunities for M/WBEs;
- 5 b. Reviewing and advancing initiatives that impact M/WBE participation, and;
- 6 c. Enhancing the notification process regarding prospective contract opportunities.

7 Rules and guidelines for the BAC shall be consistent with applicable laws for the conduct
8 of its business. The BAC membership and guidelines shall be published on the Minority Business
9 Development and Compliance Office's webpage.

10 Members shall serve for staggered terms of three (3) years. Initially up to four (4) members
11 shall be appointed for a term of three (3) years, up to three (3) members shall be appointed for a
12 term of two (2) years and up to two (2) members shall be appointed for a term of one (1) year.
13 Vacancies shall be filled by appointment of the Mayor for the remainder of the vacant term. Each
14 member shall serve without compensation.

15 The Mayor shall designate and appoint a Chairman and the committee shall elect a
16 Secretary who shall each serve for three (3) years.

17 One (1) month prior to the end of the Chairman's and the Secretary's terms, successors shall
18 be replaced pursuant to paragraph 4 above. The committee shall adopt rules consistent with
19 applicable laws for the conduct of its business.

20 The committee shall meet quarterly to review compliance with this Ordinance. In addition,
21 the committee shall at a minimum meet twice annually in open public session to receive general
22 testimony from the public. All minutes and records of the committee shall be open to the public.

1 The committee shall monitor the effectiveness of the City's program described in this Ordinance
2 and make such recommendations to SLDC as it sees fit. The actions, decisions and
3 recommendations of the Committee are to further the policies and goals of this Ordinance and shall
4 not be final or binding on the City but shall be advisory only.

5 ii. **Annual Funding for M/WBE Program.** Subject to annual appropriation, the City's
6 governing body agrees, and the Comptroller and Budget Director are hereby directed, to include
7 annually in the City budget, to provide city revenues at a minimum sufficient to support the Data
8 Analyst position and the centralized tracking and monitoring system in support of the M/WBE
9 Program.

10 iii. **Sunset Provision.** The City will require a periodic update of the disparity study to
11 evaluate the effectiveness of the M/WBE Program. The M/WBE Program will sunset on December
12 31, 2026 unless the M/WBE Program is amended or repealed by ordinance before that date. The
13 City will perform a disparity study within three years prior of the sunset date.